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AS AMENDED

By: Thompson of the Senate

Hilbert of the House

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

As used in this act:

3. "Credit card" means a card or device issued under an agreement by which the credit card issuer gives to a cardholder the right to obtain credit from the issuer or another person;

1 4. "Credit card issuer" means a lender, including a financial
2 institution or a merchant that receives applications and issues
3 credit cards to individuals;

4 5. "Credit card transaction" means a transaction in which a
5 person uses a credit card or other payment code or device issued or
6 approved through a payment card network to use a line of credit,
7 whether authorization is based on a signature, personal
8 identification number, or other means;

9 6. "Fee schedule" means any schedule, list, table, chart, or
10 similar document or agreement that sets forth or fixes the amount or
11 the formula for determining the amount of fee rates;

12 7. "Interchange fee" means a fee charged to a merchant for the
13 purpose of compensating the credit card issuer for the issuer's
14 involvement in a credit card transaction;

15 8. "Merchant" means a person who accepts payment for goods or
16 services through a credit card transaction;

17 9. "Payment card network" means an entity that directly or
18 through a licensed member, processor, or agent provides the
19 proprietary services, infrastructure, and software that:

- 20 a. routes information and data to conduct a credit card
21 transaction authorization, clearance, and settlement,
22 and
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1 b. the entity uses to accept as a form of payment, a
2 brand of credit card or other device that may be used
3 to carry out credit card transactions; and

4 10. "Swipe fee" means the interchange fee and, if applicable,
5 the assessment fee.

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 2-702 of Title 14A, unless there
8 is created a duplication in numbering, reads as follows:

9 A. A credit card issuer that, together with any affiliates, has
10 consolidated worldwide banking and nonbanking assets, including
11 affiliate assets, other than trust assets under management, of more
12 than Eighty-five Billion Dollars (\$85,000,000,000.00) at any point
13 during the previous calendar year shall not:

14 1. Fix or conspire to fix a swipe fee with or on behalf of
15 another credit card issuer or payment card network;

16 2. Receive or charge an interchange fee with respect to a
17 credit card transaction in an amount that is included on or
18 determined by a fee schedule that:

19 a. has been fixed, established, or recommended by a
20 payment card network, or

21 b. the credit card issuer knows, or reasonably should
22 know, is being used in the same calendar year by
23 another credit card issuer to determine the amount of
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1 an interchange fee with respect to a credit card
2 transaction that such issuer receives or charges;

3 3. Charge a cardholder or a merchant a fee due to a disputed
4 credit card transaction unless a finding of fact concludes that the
5 cardholder or merchant is responsible for the disputed transaction
6 and the cardholder or merchant is provided written notification of
7 the finding of fact; or

8 4. Prohibit or penalize a merchant that offers a cardholder a
9 discount for using cash, a debit card, or a gift card instead of a
10 credit card for payment.

11 B. A credit card issuer shall disclose in a clear and
12 conspicuous manner on a monthly statement sent to a cardholder that
13 has been issued a credit card by the credit card issuer the amount
14 of the swipe fee charged to the cardholder on a credit card
15 transaction if one or more swipe fees have been charged to the
16 cardholder on a credit card transaction.

17 C. A payment card network shall not:

18 1. Fix or conspire to fix a swipe fee with or on behalf of
19 another credit card issuer or payment card network;

20 2. Require a merchant to accept as payment any credit card
21 issued by the credit card issuer;

22 3. Charge a cardholder or a merchant a fee due to disputed
23 credit card transactions unless a finding of fact concludes that the
24 cardholder or merchant is responsible for the disputed credit card

1 transaction and the cardholder or merchant is provided written
2 notification of the finding of fact; or

3 4. Prohibit or penalize a merchant that offers a cardholder a
4 discount for using cash, a debit card, or a gift card instead of a
5 credit card for payment.

6 D. A payment card network shall disclose not less than forty-
7 five (45) days after the date of the credit card transaction, in a
8 clear and conspicuous manner to the merchant or another person who
9 assists the merchant in processing credit card transactions and who
10 has been designated by the merchant to receive the disclosures, the
11 rate and total amount of each swipe fee or other fee charged on each
12 credit card transaction.

13 SECTION 3. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 2-703 of Title 14A, unless there
15 is created a duplication in numbering, reads as follows:

16 A. The Attorney General may promulgate rules necessary for the
17 enforcement of this act.

18 B. The Attorney General may investigate any violation of this
19 act and may impose fines not to exceed:

20 1. Three Hundred Thousand Dollars (\$300,000.00) for an
21 individual;

22 2. Three Million Dollars (\$3,000,000.00) for an entity, if the
23 lesser of the entity's assets or market capitalization is less than
24 Ten Million Dollars (\$10,000,000.00);

1 3. Twenty Million Dollars (\$20,000,000.00) for an entity, if
2 the lesser of the entity's assets or market capitalization is at
3 least One Hundred Million Dollars (\$100,000,000.00) but less than
4 Five Hundred Million Dollars (\$500,000,000.00); or

5 4. Thirty Million Dollars (\$30,000,000.00) for an entity, if
6 the lesser of the entity's assets or market capitalization is Five
7 Hundred Million Dollars (\$500,000,000.00) or more.

8 C. The Attorney General may file an action in a court of
9 competent jurisdiction against any person in a judicial district in
10 which any of the named defendants resides, does business, or
11 maintains its principal place of business on behalf of this state to
12 enjoin temporarily or permanently any activity or contemplated
13 activity that violates or threatens to violate this act.

14 SECTION 4. This act shall become effective November 1, 2026.

15 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
16 March 5, 2026 - DO PASS AS AMENDED
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